County Administration Workshop: March 11, 2026
10:00 a.m. – Board of Commissioners Conference Room
Attending: Commissioners Ron Smith; Colene Martin; Gary Richardson; and Kassie Austin, Recorder

Chair Ron Smith called the meeting to order at 10:00 a.m.

1. **Declaration of Potential Conflicts of Interest**

Each Commissioner present reviewed the agenda. It was determined that there were not any conflicts on today's agenda.

2. **Department Business**
   a. **Finance**
      1. **Economic Development Application Process**

Ruth Nelson, Finance Director, explained that this is a continued discussion with how the county will review and approve or not approve applications moving forward. Ms. Nelson has researched how other counties handle their application processes, and to create a contract with the approval of an application. Ms. Nelson reviewed the state statute for the criteria for companies or individuals to apply. The new process creates a follow-up to determine if in fact, the company created jobs or do what they stated they would do in their application or proposal. Commissioner Martin recommended that reviewing applications twice a year instead of quarterly is more conducive of employees' time. In depth discussion took place on what the commissioners would like to see from the Economic Development Funds be used for. The board agreed that an advisory committee would be beneficial. Ms. Nelson was directed to reach out to legal to discuss the process to create an advisory committee. The board requested that this matter be moved to a general discussion as a standalone item to discuss this matter in more depth.

      2. **Resolution No. 2026-003; In the Matter of Adjusting the Terms of the Josephine County Budget Committee Members**

Ruth Nelson, Finance Director, explained that the appointments that were made last year, were only arranged for a one-year term, when Oregon Statute requires budget committee members to be appointed to a three-year term, if the agency runs an annual budget. This resolution adds two years to the committee members' term, to comply under state statute. *Commissioner Martin made a motion to approve the Resolution No. 2026-003; In the Matter of Adjusting the Terms of the Josephine County Budget Committee Members. The motion was seconded by Commissioner Richardson. Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – yes. Motion carried 3-0.*

   b. **Public Works**
      1. **Contract for Personal Services M&M Services LLC in the amount of $102,400.00**

Richard Pike, Public Works Manager, and Neil Burgess, County Engineer, discussed the contract. M&M Services will be decommissioning the old fuel tanks and lines from the public works fuel station that remain in ground. Last year, the county upgraded the fuel station. Public Works will be working with Department of Environmental Quality (DEQ) to ensure that the decommission does not contaminate any ground. The money for this project comes from the state road dollars and is at zero cost to the general fund. *Commissioner Richardson made a motion to approve the Contract for Personal Services M&M Services LLC in the amount of $102,400.00. The motion was seconded by Commissioner Martin. Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – yes. Motion carried 3-0.*

      2. **WECO Invoice in the amount of $36,639.19**

Richard Pike, Public Works Manager, and Neil Burgess, County Engineer, explained that this is the fuel bill that the county uses. It will fluctuate, based on the price of fuel. The funding for the invoice comes from the road tax dollars, and at zero cost to the county's general fund. *Commissioner Martin made a motion to approve the WECO Invoice in the amount of $36,639.19. The motion was seconded by Commissioner Richardson. Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – yes. Motion carried 3-0.*

      3. **Board No. 2026-007; In the Matter of Initiation of Proceedings to Legalize a Portion of Cave Camp Road County Road No. 4120**

Mr. Pike, Public Works Manager, and Neil Burgess, County Engineer, explained the process of a bridge project on Caves Camp Road. The road was done in 1878, with a realignment done in 1939. Mr. Burgess explained that the right of way was discussed and agreed upon in 1939. The final step was never taken, and this board order would complete the legalization of the road, as the process started and has been used for 86 years. The board order would allow public works to have the survey

done and be within compliance of Oregon statute. The order would initiate the process of public works to reach out to landowners, and to hold a public hearing for the public to be able to submit testimony. *Commissioner Richardson made a motion to approve Board Order 2026-007; In the Matter of Initiation of Proceedings to Legalize a Portion of Camp Road County Road No. 4120. The motion was seconded by Commissioner Martin. Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – yes. Motion carried 3-0.*

c. Recreation

1. Whitehorse Park Pacific Power Contract in the amount of $14,873.00

Tamra Martin, Recreation Director, explained that the county is working on renovations at Whitehorse Park. The expansion and updating of the upper loop of Whitehorse Park has been discussed for years. Ms. Martin discussed the history of the grant that the county has applied for and was approved by the State and Water Conservation. There will be 5 sites that have electric hook up for RV's, 5 sites for water and other hook ups, and 5 sites for tent camping. Two of the sites will be ADA compliant. This will finally open the upper loop of the campground, that has been closed for years. Groups that were outspoken for the conservation of the park, agree to the new plan. The first contract will allow for the powerlines to be moved to the upper loop of the park. The second agreement for the easement will give right of way access to the powerline that needs to move to the upper loop. One contract is for the work for the company to place the power on the upper loop. The board approved Ms. Martin signing the contracts on behalf of the county without objection. *Commissioner Martin made a motion to approve the Whitehorse Park Pacific Power Contract in the amount of $14,873.00. The motion was seconded by Commissioner Richardson. Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – yes. Motion carried 3-0.*

2. Whitehorse Park Power of Right of Way Easement

This matter was discussed under agenda item 2.c.1. *Commissioner Martin made a motion to approve the Whitehorse Park Power of Right of Way Easement. The motion was seconded by Commissioner Richardson. Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – yes. Motion carried 3-0.*

3. Whitehorse Park ER Electric Services Agreement in the amount of $23,758.00

This matter was discussed under agenda item 2.c.1. *Commissioner Martin made a motion to approve the Whitehorse Park ER Electric Services Agreement in the amount of $23,758.00. The motion was seconded by Commissioner Richardson. Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – yes. Motion carried 3-0.*

3. BOARD BUSINESS

a. Resolution No. 2026-002; In the Matter of Reappointment to the Josephine County Law Enforcement Service District Advisory Committee

The Board considered reappointment of a member to the Josephine County Law Enforcement Service District Advisory Committee. It was noted that the individual had previously served and had expressed willingness to continue. *Commissioner Martin made a motion to approve the Resolution No. 2026-002; In the Matter of Reappointment to the Josephine County Law Enforcement Service District Advisory Committee. The motion was seconded by Commissioner Richardson. Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – yes. Motion carried 3-0.*

4. OTHER

Wally Hicks, County Legal Counsel, presented a continued discussion regarding a conflict-of-interest waiver involving the D'Amore Law Group. He explained that the firm is currently involved in opioid-related litigation on behalf of the County while also potentially representing clients in matters that could involve the County. Mr. Hicks and Commissioner Martin both reported having direct discussions with representatives of the firm, who indicated that safeguards are in place to prevent conflicts, including limiting staff overlap between cases. It was further noted that the likelihood of the County being directly involved in the related matter is minimal. The Board discussed the importance of maintaining professional relationships with legal counsel while also carefully considering potential conflicts. Commissioner Richardson expressed concern about even the appearance of a conflict, while the other Commissioners indicated comfort with the safeguards described. *Commissioner Martin made a motion to approve the conflict-of-interest waiver. Commissioner Smith seconded the motion. Upon roll call, Commissioner Richardson – no, Commissioner Martin – yes, Commissioner Smith – yes. Motion carried 2-1.*

5. ADDITIONAL SUBJECT MATTERS FROM COMMISSIONERS/ANNOUNCEMENTS:

None heard.

The meeting adjourned at 10:50 a.m.